

1 her cross-complaint. And that's what she says she wants
2 to do, anyway.

3 **MS. AASEN:** If that's your Honor's ruling, we'll
4 evaluate whether we have an ongoing need for them, and
5 with an eye towards what she's pleading in defense of the
6 existing complaint.

7 **MS. WALSH:** Your Honor, one more thing. I'm right
8 now being ordered to attend this mental examination on
9 the 26th and 27th from September 8th. There's rising
10 COVID cases in New York City. If you look at the order,
11 I'm being told that I can't wear a mask during the
12 evaluation. I'm scared to death of Mr. Russell knowing
13 my location.

14 I ask that the court, if I'm dismissing my
15 complaint and I don't sign these authorizations, that if
16 I don't attend this mental examination, that I not be
17 penalized with more money for the mental evaluator's
18 time.

19 **JUDGE PRO TEMPORE:** No. I agree with you. They are
20 now on notice that you don't intend to appear for that.
21 And I'm saying that they can't -- they can't then seek to
22 recover costs for somebody coming out when you've told
23 them that you wouldn't do it. But my order will cover
24 that. My order will save you the trouble --

25 **MS. WALSH:** Okay.

26 **JUDGE PRO TEMPORE:** -- of filing a dismissal. And I

1 will just give you -- today is the 6th. I will give you
2 ten days to authorize the signatures that they ask for in
3 their motion.

4 **MS. WALSH:** Okay.

5 **JUDGE PRO TEMPORE:** If you fail to do it, I will
6 impose the sanction that your cross-complaint will be
7 dismissed and the psychiatric I.M.E. will be cancelled.

8 **MS. WALSH:** And I'm sorry, your Honor, for rambling
9 so much. But they sent discovery requests to every
10 single family member and to a few of my best friends for
11 things like five years' worth of text messages. Again,
12 it's not that they're not trying to comply, but I can't
13 put them in the cross fire of Mr. Russell.

14 I would ask that the court also include those
15 discovery requests, as Mr. Russell's counsel said that
16 those discovery requests were only relevant to my
17 cross-complaint. And again, these people don't even know
18 Mr. Russell, live in New York, want nothing to do with
19 the guy, know nothing about him, have never stepped a
20 foot in California.

21 So I ask that that also be included in the
22 order because all of my friends are terrified of
23 Mr. Russell. The legal fees, the ramifications have
24 already put them through enough.

25 **JUDGE PRO TEMPORE:** Ms. Walsh, the problem is, I
26 don't have that in front of me. I don't know what the

1 discovery is. And that is something that you'll have to
2 take up with them as to whether or not the deposition
3 notices they have sent for family members or friends are
4 relevant to the main suit as opposed to your
5 cross-complaint.

6 Okay?

7 And I'm sure Ms. Aasen will take a look at it
8 and decide whether or not she believes that they still
9 are necessary, but I can't deal with them because I don't
10 have them in front of me.

11 Okay?

12 **MS. WALSH:** Okay.

13 **JUDGE PRO TEMPORE:** The only thing I can deal with is
14 their Motion to Compel you to authorize the release of
15 certain records. And the order that I will issue is that
16 you will have to comply with their request for
17 authorization within ten days from today. And that
18 failure -- if you fail to do it, that your
19 cross-complaint will be dismissed with prejudice and the
20 I.M.E. will be cancelled.

21 **MS. WALSH:** Okay. All right.

22 **JUDGE PRO TEMPORE:** Ms. Aasen, do you understand?

23 **MS. AASEN:** I understand, your Honor.

24 **JUDGE PRO TEMPORE:** And will you prepare that form of
25 order and submit a copy to her for review and approval as
26 to form, and then send a copy to me?

1 **MS. AASEN:** We are to prepare the proposed order as
2 your Honor just described, just to make sure I get it
3 right, she is compelled to sign the authorizations within
4 ten days?

5 **JUDGE PRO TEMPORE:** Yes.

6 **MS. AASEN:** And then, should she not, then we will
7 formally dismiss her cross-complaint with prejudice?

8 **JUDGE PRO TEMPORE:** Right. And that the I.M.E. that
9 is presently scheduled for -- I think it's October
10 26th -- has been cancelled -- will be cancelled.

11 **MS. AASEN:** We're going to exclude all the evidence
12 of her emotional distress. And she should also be
13 excluded from discussing her emotional distress at trial.

14 **MS. WALSH:** That doesn't make any sense. Well,
15 whatever.

16 **JUDGE PRO TEMPORE:** The problem is, I don't know, in
17 the context in which you say "discuss her emotional
18 distress," so I'm not prepared to go that far. So I'll
19 let the trial judge make that judgment.

20 **MS. AASEN:** Yes, your Honor.

21 **JUDGE PRO TEMPORE:** Ms. Walsh, anything else?

22 **MS. WALSH:** That's it.

23 **JUDGE PRO TEMPORE:** Do you understand the import of
24 what I said?

25 **MS. WALSH:** Umm, I do, yeah. I wish to drop my
26 cross-complaint, anyway, so --

1 **JUDGE PRO TEMPORE:** You'll get your wish.

2 **MS. WALSH:** Okay.

3 **JUDGE PRO TEMPORE:** Okay?

4 **MS. WALSH:** All right. Thank you, your Honor. I
5 have to go get my daughter from my dad. He's freaking
6 out. So...

7 **JUDGE PRO TEMPORE:** All right. Anything else?

8 **MS. AASEN:** No, your Honor.

9 **JUDGE PRO TEMPORE:** All right. Thank you.

10 **MS. WALSH:** All right. Thank you, your Honor. Bye.

11 **JUDGE PRO TEMPORE:** Good luck.

12 (Proceedings concluded at 9:54 a.m.)

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REPORTER'S CERTIFICATE

STATE OF CALIFORNIA }
COUNTY OF ORANGE } ss.

I, PATRICK R. BREZNA, CSR NO. 5288, CERTIFIED
REALTIME REPORTER, REGISTERED PROFESSIONAL REPORTER, DO
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A FULL, TRUE AND CORRECT TRANSCRIPTION OF MY SHORTHAND
NOTES THEREOF, AND A FULL, TRUE AND CORRECT STATEMENT OF
THE PROCEEDINGS HAD IN SAID CAUSE BASED ON THE ZOOM WEBINAR
PLATFORM.

DATED AT ORANGE, CALIFORNIA, THIS 6th DAY OF
OCTOBER, 2020.

PATRICK R. BREZNA, CSR NO. 5288,
Certified Realtime Reporter,
Registered Professional Reporter

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SUPERIOR COURT OF CALIFORNIA
FOR THE COUNTY OF SAN FRANCISCO

STEPHEN RUSSELL, etc.,
Plaintiff,

v.

TARA WALSH, etc., et al.,
Defendants.

AND RELATED CROSS-COMPLAINT.

WAIVER OF COST FOR
REPORTER'S TRANSCRIPT
ON APPEAL

No. CGC-18-570137

TO THE CLERK OF THE ABOVE-ENTITLED COURT:

YOU ARE HEREBY NOTIFIED THAT PATRICK R. BREZNA,
CSR NO. 5288, COURT REPORTER PRO TEMPORE, RPR, CRR, HEREBY
WAIVES THE COST FOR PREPARATION OF AN ORIGINAL AND ONE COPY
OF THE REPORTER'S TRANSCRIPT ON APPEAL DESIGNATED BY
DEFENDANT/APPELLANT FOR THE DATE OF OCTOBER 6, 2020, IN THE
ABOVE-CAPTIONED CASE.

DATED AT ORANGE, CALIFORNIA, THIS 13th DAY OF
MAY, 2022.


PATRICK R. BREZNA, CSR NO. 5288
COURT REPORTER PRO TEMPORE

1 IN THE SUPERIOR COURT OF THE STATE OF CALIFORNIA

2 IN THE CITY AND COUNTY OF SAN FRANCISCO

3 BEFORE THE HONORABLE GARRETT L. WONG, JUDGE

4 DEPARTMENT 504

5 ---OOO---

6 STEPHEN RUSSELL,)

7 Plaintiff,)

8 vs.)

CASE NO. CGC-18-570137

9 TARA WALSH, et al.,)

10 Defendant)

11 _____)
12 REPORTER'S TRANSCRIPT OF PROCEEDINGS

13 Wednesday, February 16, 2022

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24 Reported by Angie Diner, RMR, CRR, CSR 9581

1 A P P E A R A N C E S:

2

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WITNESS INDEX

WITNESS:

PAGE:

TARA WALSH

DIRECT EXAMINATION BY MR. WALLER.....64

PLAINTIFF'S EXHIBITS

NO.	DESCRIPTION	MARKED	ENTERED
COURT EXHIBIT 1		102	
EXHIBIT 11			147
EXHIBIT 32			136
EXHIBIT 33			138
EXHIBIT 36			201
EXHIBIT 38			130
EXHIBIT 38-A			127
EXHIBIT 38-B			110
EXHIBIT 39			172
EXHIBIT 46			149
EXHIBIT 72			116
EXHIBIT 99			155



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1 PROCEEDINGS FOR FEBRUARY 16, 2022
2 GARRETT L. WONG PRESIDING DEPT. 504
3 9:39 A.M.

4 ---000---

5 THE CLERK: Calling the case of Stephen
6 Russell v. Tara Walsh, Case Number CGC 18-570137.

7 Counsel, please state your appearances.

8 MR. WALLER: Good morning, Your Honor. For
9 the plaintiff, Stephen Russell, I'm Brian Waller.

10 THE COURT: Thank you.

11 MS. WALSH: Tara Walsh, self-represented party
12 and defendant.

13 THE COURT: Very good. Thank you.

14 Good morning, ladies and gentlemen. Welcome
15 to Department 504, and we are about to begin this
16 case. We're entering the phase of trial where I will
17 initially give you some instructions about your
18 duties as jurors in this case, and then -- that will
19 take roughly 20 minutes, 25 minutes, and after that
20 we will have opening statements in the case.
21 Mr. Waller will presumably give an opening statement,
22 and if Ms. Walsh decides to make an opening
23 statement, she can do so. She has the option of
24 waiting until the presentation of her case.

25 So without further ado, I will go to the basic